

LEGAL OFFICE PROCEDURES (245)

NATIONAL – 2019

PART 1 - Objective:

Multiple Choice & True/False (40 @ 2 points each) _____ (80 points)

Part 2 - Production:

Job 1: Power of Attorney _____ (100 points)

Job 2: Pleading _____ (100 points)

Job 3: Interrogatories _____ (100 points)

TOTAL POINTS _____ **(380 points)**

Failure to adhere to any of the following rules will result in disqualification:

- 1. Contestant must hand in this test booklet and all printouts. Failure to do so will result in disqualification.**
- 2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests or facsimile (handwritten, photocopied, or keyed) are allowed in the testing area.**
- 3. Electronic devices will be monitored according to ACT standards.**

No more than ten (10) minutes orientation

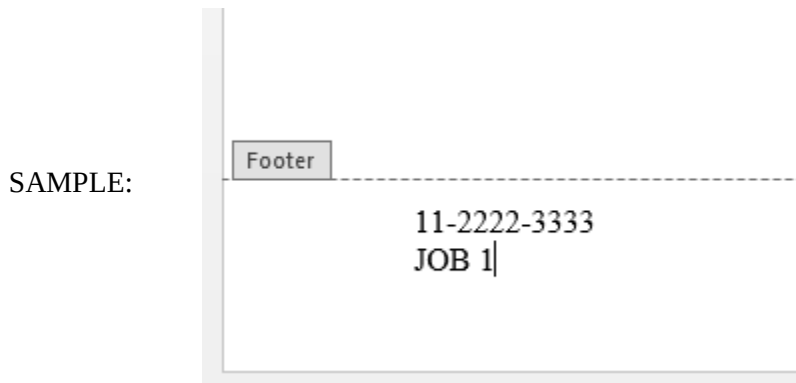
No more than sixty (60) minutes testing time

No more than ten (10) minutes wrap-up

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Workplace Skills Assessment Program competition.

General Instructions

1. Answer the objective questions using instructions given by the administrator.
2. Ensure this test booklet contains Jobs 1-3.
3. Key all jobs according to the instructions provided.
4. Correct any obvious keyboarding errors and incorporate any editing notations.
5. Correct any errors in formatting. Use formatting shown in the *Style & Reference Manual*.
6. For any problem where you would normally key your reference initials, key your contestant number. Your name or initials should *not* appear on any work you submit.
7. Key your contestant number and job number as the footer in the lower left-hand corner of all work submitted unless otherwise specified.



8. If you finish before the end of the allotted testing time, notify the proctor. Time may be a factor in determining a winner when there is a tie score.
9. When turning in your materials, place your scoring sheet on top of your jobs. The jobs should be in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

PART I – OBJECTIVE

Multiple-Choice Instructions:

Select the letter of the answer that best answers the question or completes the statement.

1. Mayhem is a crime involving
 - A. a person.
 - B. property.
 - C. public decency.
 - D. public authority.
2. Which of the following would *not* be a crime against public authority?
 - A. Perjury
 - B. Fraud
 - C. Bribery
 - D. Obstructing justice
3. Corpus Juris Secundum (C.J.S.) is a
 - A. legal encyclopedia.
 - B. citatory.
 - C. digest.
 - D. reporter.
4. *Smith vs. Packard*, 210 Mo. 118, is an example of a
 - A. Supplement,
 - B. Classification,
 - C. Citation,
 - D. report,
5. A “Z ruling” is used to:
 - A. indicate that additional material will be inserted.
 - B. indicate deleted material.
 - C. eliminate the possibility of forgery.
 - D. none of these.
6. A verification is a(n)
 - A. a sworn question-answer statement.
 - B. a sworn statement by which signer acknowledges he signed the document.
 - C. a sworn confirmation of the truth of the statements contained in the document.
 - D. an authenticated copy of a recorded document.
7. Which of the following would *not* be a crime against a person?
 - A. Homicide
 - B. Battery
 - C. Kidnapping
 - D. Embezzlement

8. Criminal matters take precedence over civil matters as provided for by the
- A. state constitution,
 - B. state statute,
 - C. U.S. Constitution,
 - D. federal statute,
9. Execution of an instrument means
- A. preparing an instrument,
 - B. signing an instrument,
 - C. acting upon an instrument,
 - D. creating an instrument,
10. A listing kept by the court clerk of all cases to be heard by the court is a
- A. court plan,
 - B. calendar,
 - C. court docket,
 - D. court schedule,
11. Which of the following terms is a *valid* criminal defense in *most* of the states?
- A. Lack of capacity
 - B. Double jeopardy
 - C. Coercion
 - D. All of the above
12. Which pleas may *not* be used by the defendant in a criminal matter?
- A. Nolo contendere
 - B. Former jeopardy
 - C. Irreconcilable differences
 - D. None of these
13. Which of the following crimes is *not* a crime against public authority?
- A. Receiving stolen goods
 - B. Obstructing justice
 - C. Compounding a crime
 - D. None of these
14. The party taking a case up on appeal is the
- A. appellant.
 - B. appellee.
 - C. respondent.
 - D. none of these.
15. The pleading that states the defendant's defense against the plaintiff's claims is the
- A. prayer.
 - B. bill of particulars.
 - C. answer.
 - D. complaint.

16. Three types of legally recognized partnerships are
- A. general partnership, limited liability partnership, and corporate partnership.
 - B. professional practice partnership, general partnership, and limited-term partnership.
 - C. limited liability partnership, limited partnership, and general partnership.
 - D. general partnership, limited-term partnership, and corporate partnership.
17. Which of the following is the *correct* order of courts, from lowest to highest?
- A. Trial Court—Traffic Court—Appellate Court
 - B. Federal District Court—Federal Circuit Court—U.S. Supreme Court
 - C. Appellate Court—District (or trial) Court—State Supreme Court
 - D. Probate Court—Family Court—Federal District Court
18. Extra copies of legal papers are provided to clients as
- A. a legal requirement.
 - B. the decision of the legal secretary.
 - C. a good public relations technique.
 - D. a necessity of all law offices.
19. A demurrer is a pleading
- A. answering plaintiff's Complaint.
 - B. stating that the facts in the Complaint are not sufficient to require an answer.
 - C. notifying the court that the defendant is represented by counsel.
 - D. between the two attorneys in the case.
20. When the names of one or more defendants in a suit are *not* known, they are identified in the case title by a
- A. Doe clause.
 - B. service.
 - C. venue.
 - D. none of the above.

True or False Instructions:

Mark "A" if the statement is True. Mark "B" if the statement is False.

1. An adult can adopt another adult providing the adopting adult is older than the adult being adopted.
2. A "notice of *lis pendens*" is an office-typed pleading containing the title of the case and giving notice to the world that the property described in the case is the subject of legal action.
3. A "devise" is a gift of money.
4. The United States has a set of 51 different laws representing each state and the federal government.

5. When a party has his attorney represent him in a legal action, he is said to be appearing “*in propria persona*” or “*pro per.*”
6. Legal documents prepared subsequent to the initial pleading are delivered to the attorneys, not the litigants.
7. Demur is both a noun and a verb.
8. When one is served with a subpoena *duces tecum*, he must bring to court with him the materials or papers specified.
9. Law office file copies of recorded documents should be conformed to show the recorded information if it is available.
10. “Letters” is the term given to the legal document, which authorizes the appointed individual to act for another in a probate matter.
11. A bond is always required of executors.
12. An administrator is appointed by the court when a person dies “intestate.”
13. In some jurisdictions both of the following spellings are correct: subpoena and subpena.
14. An executor is appointed by the court to administer an intestate estate.
15. A petty cash fund is also called an *imprest fund*.
16. Legal offices must maintain a minimum of two separate bank accounts.
17. Notary publics are responsible for and are held personally liable for carrying out the duties of the notary public office.
18. The laws governing community property in Texas and California are the same.
19. The grounds for a legal separation are not the same as the grounds for dissolution.
20. Statute of limitations vary among types of claims, but they are consistent from state to state.

PART 2 – PRODUCTION

Instructions: Review the directions for the “Jobs” listed below and complete. Correct any formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.

Job 1

Prepare the following Power of Attorney according to the Professional Business Associates *Style & Reference Manual*.

Durable Power of Attorney - Know all men by these presents, that Michael Smith, grantor, has made, constituted, and appointed and by these presents does make, constitute and appoint Siobhan Raasch his true and lawful attorney in fact for him and in his name, place and stead, for the soul and singular purpose of: executing any and all documents necessary or required to establish or creat a joint account betwen Michael Smith and Siobhan Raasch at Bundoran National Bank or any other banking or savings and loan institution, and further, Siobhan Raasch is further empowered to make, do, and transact any and every kind of business of whatsoever kind and whatsoever nature on behalf of the Grantor, giving and granting unto Siobhan Raasch, said attorney-in-fact, full power and authority to do and perform all and every act and thing whatsoever requisit and necessary. In witness whereof, I have hereonto set my hand and seal this day of 20___. Add Notary Public signature information, witnesses and grantor signature line.

Job 2

Prepare the following pleading according to the *Style & Reference Manual*. (Case #TB-2018-8675309)

Final Judgment in the Circuit Court of the fifth judicial circuit in and for Milwaukee County, WI
This cause having come on for trial on January 25, 2018, and in view of the foregoing, it is ordered and adjudged that Plaintiff Joseph Thompson shall recover from Defendent Steven Bloor the total sum of \$13,000.00 as a settlement in the matter now before the court.
This judgment shall bear interest at the rate of 12 percent per annum until paid in full.
Done and ordered in chambers at Wauwatosa, Milwaukee County, WI this day of 20___. Add County Judge signature information and copies furnished.

Job 3

Prepare the following Interrogatories according to the *Style & Reference Manual*.

In the circuit court of the seventh judicial circuit in and for Milwaukee County, WI. Trisha Tulip, plaintiff versus Darren Dandelion, defendant with Case # TS-2018-12354 Interrogatories 1. Please state your name and current address. 2. List all former names and when you were known by those names. State all addresses where you have lived for the past seven (7) years, the dates you lived at each address, your Social Security number, and your date of birth. 3. What is your occupation, business or profession? 4. List all business, commercial, and professional licenses which you now hold or which you have held in the last 3 years. 5. Do you have a valid driver's license? If yes, what state and expiration dates. 6. Please state if you have ever been a party, either plaintiff or defendant, in a lawsuit other than the current matter and if so, state whether you were plaintiff or defendant, the nature of the action, and the date and court in which such suit was filed. Include a line for the attorney of record.